

25CV04836 Robert Ottinger v. Paul P. Weishaar, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-06

Motion: Motion of Defendants Paul P. Weishaar and PPW Motorcars, LLC, to Quash Service of Summons

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Tentative Ruling: Robert Ottinger v. Paul P. Weishaar, et al.

Case Number

25CV04836

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/06/2026 - 10:00

Nature of Proceedings

Motion of Defendants Paul P. Weishaar and PPW Motorcars, LLC, to Quash Service of Summons

Tentative Ruling

For Plaintiff Robert Ottinger: Robert W. Ottinger, The Ottinger Firm, P.C.

For Defendants Paul P. Weishaar and PPW Motorcars, LLC: Andrew Wyatt, Wyatt

Law

RULING

The motion of Defendants to quash service of summons is granted in part. The motion is construed as a motion to stay or to dismiss for inconvenient forum and is granted. This action is stayed pending the filing or other disposition of an action in

Missouri. The Court will set an order to show cause re dismissal as to an action in Missouri.

Counsel for Defendants, Andrew Wyatt of Wyatt Law, is ordered to appear at the hearing of this motion (Zoom appearance is acceptable) and to explain why this Court should not set an order to show cause re sanctions for misrepresentation of the terms of the forum selection agreement.

Background

On August 5, 2025, Plaintiff Robert Ottinger filed his original complaint in this action against Defendants Paul P. Weishaar and PPW Motorcars, LLC (PPW) asserting five causes of action: (1) fraud; (2) conversion; (3) quantum meruit; (4) promissory fraud; and (5) negligent misrepresentation. All of these causes of action arise out of the sale of a vehicle. (Complaint, ¶¶ 1, 10.)

Proof of service of the summons and complaint were filed on October 21, 2025. The proofs of service show personal service on each Defendant in St. Louis, Missouri.

Defendants' respective defaults were entered on December 5, 2025. On December 29, 2025, Defendants filed their motion to set aside the defaults. On March 4, 2026, the Court granted the motion and set aside the defaults.

On April 2, 2026, Defendants filed this motion to quash service of summons.

No opposition or other response has been filed to this motion.

Analysis

Defendants' motion is styled as a motion to quash service of summons pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1) on the grounds that venue in this action is improper and that the parties expressly agreed to litigate disputes in Missouri.

"A Defendant, on or before the last day of his or her time to plead or within any further time that the Court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes:

"(1) To quash service of summons on the ground of lack of jurisdiction of the Court over him or her.

"(2) To stay or dismiss the action on the ground of inconvenient forum." (Code Civ. Proc., § 418.10, subd. (a)(1), (2).)

The motion is improperly styled as a motion to quash service of summons. As quoted above, a motion under section 418.10, subdivision (a)(1) is to quash on the grounds of a lack of jurisdiction of the Court over the person of the Defendants.

Personal jurisdiction is acquired by effective service of process and a demonstration of minimum contacts. (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1229.) The existence of a forum selection agreement does not deprive a Court of personal jurisdiction. Defendants make no argument and present no facts to show that this Court does not have personal jurisdiction over the Defendants. In the absence of other evidence, the proofs of service filed with the Court and a transaction in California are sufficient to establish personal jurisdiction over the Defendants.

“ ‘While ... parties may not deprive Courts of their jurisdiction over causes by private agreement [citation], it is readily apparent that Courts possess discretion to decline to exercise jurisdiction in recognition of the parties’ free and voluntary choice of a different forum.... [¶] No satisfying reason of public policy has been suggested why enforcement should be denied a forum selection clause appearing in a contract entered into freely and voluntarily by parties who have negotiated at arm’s length.... [F]orum selection clauses are valid and may be given effect, in the Court’s discretion and in the absence of a showing that enforcement of such a clause would be unreasonable.’ [Citation.] ‘Given the importance of forum selection clauses, both the United States Supreme Court and the California Supreme Court have placed a heavy burden on a Plaintiff seeking to defeat such a clause, requiring it to demonstrate that enforcement of the clause would be unreasonable under the circumstances of the case.’ [Citation.]” (Miller-Leigh LLC v. Henson (2007) 152 Cal.App.4th 1143, 1149.)

Although the notice of motion refers to section 418.10, subdivision (a)(1), it is clear both from the grounds stated in the notice and the text of the motion that Defendants’ motion is instead intended to be brought under subdivision (a)(2) to stay or to dismiss on the grounds of an inconvenient forum because of the forum selection agreement.

The complaint alleges that the parties entered into an agreement for the purchase of a vehicle. (Complaint, ¶¶ 1, 10.) Defendants present evidence of the terms of the agreement, including the following:

“Any dispute arising from this transaction are to be heard in St. Louis County, Missouri.” (Weishaar decl., ¶ 36 & exhibit A, p. 15.)

This language appears in an “AS-IS Disclosure” and apparently has Plaintiff’s separate signature immediately underneath.

This evidence is sufficient to show an enforceable forum selection agreement. There is no opposition or other response filed by Plaintiff. The motion will therefore be granted to stay this action.

The Court additionally notes a concerning feature of the motion. On page 7 of the motion, counsel states (emphasis in original):

“Lastly, the As-Is Disclosure contains a Missouri venue provision that states:

‘Any disputes arising under or related to this Agreement shall be brought exclusively in the state or federal Courts located in St. Louis County, Missouri, and the parties hereby consent to such jurisdiction and venue.[.]’ (See Declaration of Paul P. Weishaar and Exhibit A)”

As quoted above, both the declaration of Paul Weishaar and the attached exhibit A contain language that is substantially different from that which is represented to the Court by counsel for Defendants in the memorandum in support. Although the agreement does contain a forum selection provision using weaker language, the above language in the memorandum misrepresents the operative language of the agreement and does so with emphasis on the misrepresented terms. The Court requires an explanation.

Judges

Judge Thomas Anderle

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